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The State Secretary for the Interior and Kingdom Relations
P.O. Box 20011
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Date

August 29, 2023

Our reference

z2023-02871

Your letter dated

June 19, 2023

Your reference

2023-0000337689

Subject

Advice on the draft for the Act introducing BSN and provisions for digital government BES

Dear Ms. Van Huffelen,

In a letter dated June 19, 2023, the Authority for Personal Data (AP) was consulted pursuant to Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR) regarding the draft for the amendment of various laws in connection with the introduction of the citizen service number (BSN) and the provisions of the digital government in Bonaire, Sint Eustatius, and Saba (Act introducing BSN and provisions for digital government BES) (hereinafter: the draft). Further information was provided upon request via emails dated August 9 and 10, 2023.

The assessment of the personal data aspects of the draft gives the AP reason to make some comments.

Scope of the draft

The draft aims to bring the digital services of the (semi-)government in Caribbean Netherlands to a level as comparable as possible to that in European Netherlands. To this end, the draft ensures that:

- all registered residents of Caribbean Netherlands are assigned a BSN;
- this BSN is included in both the Basic Registration of Persons (BRP) and the Basic Administration of Personal Data BES (Bap BES);
- government bodies and other users in Caribbean Netherlands are entitled to process the BSN;
- residents and businesses of Caribbean Netherlands can use digital login tools, such as DigiD and eRecognition;
- the BSN is included on newly issued ID cards BES.

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Residents of Caribbean Netherlands obtain a BSN after they are registered in the BRP. The Minister of the Interior and Kingdom Relations (BZK) notifies the executive council of the BES of the registration, mentioning the BSN of the registrant. The executive council of the BES then registers the BSN in the Bap BES.

Advice

Explanation of the necessity of dual registration

The draft provides for the registration of personal data of residents of Caribbean Netherlands in both the BRP and the Bap BES. Such dual registration and the data exchanges that take place in that context pose (additional) risks to the protection of personal data. Dual registration is therefore only permitted if it is necessary for the intended purpose (requirements of subsidiarity and proportionality).

Upon request, the necessity of dual registration has been further substantiated:

It is important that residents of Caribbean Netherlands obtain the BSN, and not another registration number, so that those residents who already have a BSN (20 to 30%) can retain that number. Additionally, the AOW accrued in the Netherlands and the AOV accrued in Caribbean Netherlands can be recorded under the same number. Furthermore, this allows for the unreserved use of the digital services developed in the Netherlands based on the BSN, such as DigiD, without the need to establish a separate system for Caribbean Netherlands. The BSN is only issued to individuals who are registered in the BRP.

Moreover, it has been substantiated that the BRP and the Bap BES differ in various respects, which would make the technical and organizational impact of a complete replacement by the BRP very significant.

The AP advises that this further substantiation be included in the explanation.

Explanation of appropriate safeguards

The draft stipulates that the Minister of BZK provides the BSN of a resident of Caribbean Netherlands to the executive council of the BES after that resident has been registered in the BRP. Caribbean Netherlands does not belong to Europe and is therefore to be regarded as a third country in the sense of the GDPR. The transfer of personal data to a third country is only possible on the basis of:

1 And the administrative number (the proposed Article 2.84, third paragraph, of the Act BRP). The administrative number is already included in the BRP and the Bap BES. It is a personal number used in the communication with municipalities, respectively public bodies, and the users of the BRP or Bap BES. It is also used in the Bap BES for the registration of moves within the Caribbean part of the Kingdom.

2 Subsidiarity: the intended goal cannot reasonably be achieved as effectively by other means that are less intrusive to the rights of the individuals involved.

3 Proportionality: the interference is not disproportionate to the intended goal, which particularly implies a weighing of the importance of the goal and the severity of the interference.

4 Emails dated August 9 and 10, 2023.

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1. an adequacy decision⁵;
2. appropriate safeguards⁶;
3. binding corporate rules (BCR)⁷ or
4. specific exceptions^{8,9}

According to the explanation, there are appropriate safeguards (2.). This is substantiated as follows: The Personal Data Protection Act BES (Wbp BES) and the Bap BES Act provide, within the frameworks of the Constitution, the European Convention on Human Rights, and the Convention for the Protection of Individuals with regard to Automatic Processing of Personal Data (Convention 108), enforceable rights and effective legal remedies for the protection of privacy, ensured by the presence of an independent supervisory authority, the CBP BES. The principles from the Wbp BES correspond with those of the GDPR and the Implementation Act GDPR. Furthermore, the draft contains a number of privacy-protective measures, including an active information obligation, a duty for self-evaluation, and the use of technically secure channels, according to the explanation.¹⁰

The Wbp BES was evaluated in 2019. The evaluation report concludes that it cannot be stated outright that there are appropriate safeguards. Although the Wbp BES seems to sufficiently protect the personal data of the residents of Caribbean Netherlands, the implementation, execution, and supervision leave much to be desired, according to the evaluation report.¹¹

This conclusion from the evaluation report has not been taken into account in the considerations in the explanation regarding appropriate safeguards.

The AP advises to do so.

Workload AP

It is likely that the draft will require the AP to make limited additional efforts. This effort has not yet been factored into the financing of the AP. This will need to be addressed in consultation with the Minister for Legal Protection - as the responsible party for the budget from which the AP is financed - prior to the entry into force. For that reason, a copy of this advice is sent to the Minister for Legal Protection.

5 Article 45 of the GDPR.

6 Article 46 of the GDPR.

7 Article 47 of the GDPR.

8 Article 49 of the GDPR.

9 Article 44 of the GDPR.

10 Explanatory Memorandum, pp. 28-31.

11 Evaluation of the Personal Data Protection Act BES, Pro Facto, September 2019, p. 70.

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Disclosure

The AP intends to make this advice public no earlier than four weeks after the date on its website www.autoriteitpersoonsgegevens.nl. Unless otherwise notified, it assumes that there are no objections to this.

Yours sincerely,

Dutch Data Protection Authority,

Aleid Wolfsen

Chairman